



United States
Attorney's Office
District of Connecticut



Former State Official and State Representative Charged with Offenses Related to Cancelled State Audit of Medicaid Provider



Friday, February 28, 2025

For Immediate Release

U.S. Attorney's Office, District of
Connecticut

Marc H. Silverman, Acting United States Attorney for the District of Connecticut, Anish Shukla, Acting Special Agent in Charge of the New Haven Division of the FBI, and Harry T. Chavis, Jr., Special Agent in Charge of IRS Criminal Investigation in New England, today announced that a federal grand jury in New Haven has returned an 18-count indictment charging KONSTANTINOS "KOSTA" DIAMANTIS, 68, of Farmington, and CHRISTOPHER ZIOGAS, 73, of Bristol, with various offenses related to the cancelling of a state audit of a Medicaid provider who engaged in health care fraud.

The indictment was returned on February 25, 2025. Diamantis and Ziogas each appeared today before U.S. Magistrate Judge S. Dave Vatti in Bridgeport, entered pleas of not guilty to the charges in the indictment, and were released on \$500,000 bonds.

As alleged in the indictment, between January and June 2020, Diamantis, while serving at Deputy Secretary of the State of Connecticut's Office of Policy and Management (OPM), and Ziogas, who served as a State Representative for Connecticut's 79th Assembly District, engaged in a scheme in which Diamantis solicited and received corrupt payments and benefits from Helen Zervas, an optometrist and owner of Family Eye Care in Bristol, in exchange for official acts concerning a State of Connecticut audit of Zervas's and Family Eye Care's Medicaid overbilling. Diamantis and Ziogas then took steps to conceal their conduct.

As part of the alleged scheme, in January 2020, an official with Connecticut's Department of Social Services (DSS) provided notice that it would perform an audit of Zervas's and Family Eye Care's Medicaid billing. Zervas, [who has been charged separately](#), knew that she had fraudulently overbilled Medicaid for medical services that she had not provided, or that were not medically necessary. Zervas

sought assistance from Ziogas, who was her fiancée, to prevent the DSS audit from proceeding. Ziogas, in turn, sought help from Diamantis. In exchange for payments from Ziogas and Zervas, Diamantis undertook official acts, and pressured other state officials to undertake official acts, aimed at favorably resolving the DSS audit.

As alleged in the indictment, on March 4, 2020, Ziogas made a bribe payment to Diamantis in the amount of \$20,000. On that date, Zervas's attorney emailed a DSS official with a settlement offer to resolve DSS's audit. The next day, Zervas reimbursed Ziogas with a \$25,000 check from Family Eye Care. On March 12, 2020, Ziogas made a \$10,000 bribe payment to Diamantis, and was subsequently reimbursed by Zervas. After having been advised and pressured indirectly by Diamantis through officials at OPM and DSS, the DSS official cancelled the DSS audit and, on May 1, 2020, accepted Zervas's settlement proposal.

The indictment further alleges that, on May 12, 2020, Diamantis and Ziogas delivered a check from Family Eye Care in the amount of \$599,810 to DSS. On May 15, 2020, Ziogas, through Zervas, made a final bribe payment of \$65,000 to Diamantis.

The indictment also alleges that Diamantis and Ziogas made multiple false statements when interviewed by the FBI during the investigation of this matter, and that Diamantis failed to include the \$95,000 in corrupt payments on his 2020 federal tax return.

Finally, the indictment alleges that Ziogas, an attorney, separately committed bank fraud. Ziogas was the trustee of a client trust, identified in the indictment as "Trust-1." In November 2019, Ziogas prepared and caused to be negotiated a check from Trust-1 in the amount of \$5,500 made out to "Kosta Diamantis."

The indictment charges Diamantis and Ziogas with extortion under color of official right, which carries a maximum term of imprisonment of 20 years; bribery, which carries a maximum term of imprisonment of 10 years; conspiracy to commit extortion under color of official right, which carries a maximum term of imprisonment of 20 years; and conspiracy to commit bribery, which carries a maximum term of imprisonment of five years.

The indictment also charges Diamantis with seven counts, and Ziogas with two counts, of making false statements, which carries maximum term of imprisonment of five years on each count; Diamantis with one count of filing a false tax return, which carries a maximum term of imprisonment of three years; Ziogas with three counts of making illegal monetary transactions, which carries a maximum term of imprisonment of 10 years on each count; and Ziogas with one count of bank fraud, which carries a maximum term of imprisonment of 30 years.

Acting U.S. Attorney Silverman stressed that an indictment is only a charge and is not evidence of guilt. Charges are only allegations, and each defendant is presumed innocent unless and until proven guilty beyond a reasonable doubt.

This investigation is being conducted by the Federal Bureau of Investigation and the Internal Revenue Service – Criminal Investigation Division. The case is being prosecuted by Assistant U.S. Attorneys

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